

## 24PR00582 Matter of Scott Lindquist OBRA 93 Special Needs Trust

County: sonoma

Division: Probate

Hearing date: 2026-08-14

Motion: First Account and Report of Trustee; Petition for Settlement; for Reduction of Bond; for Approval of Trustee Fees; and for Approval of Fees and Costs Advanced to Attorneys

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Tentative Ruling: This matter is CONTINUED to November 25, 2026 at 9:30 a.m. in Department 63 for the reasons set forth below.

The trust requires accountings to comply with Probate Code [Prob C] §§2620-2628. Trust, 4.03 at subsection 6. Prob C §2620(c) requires financial statements to be lodged in support of the accounting. At the initial hearing on this petition, the impediment to granting the petition was the lack of supporting financial statements. Supporting statements were lodged July 21, 2026. The accounting shows Exchange Bank account no. 2827 held \$78,642.04 at the end of the accounting period, but the statements show \$77,754.32. The Court finds no explanation for this discrepancy. Also, the statements for the Merrill Lynch account no. 1791 do not corroborate the cash on hand at the end reflected in the accounting. No statements are provided for the Oakmont Gardens Credit or the True Link Cards. The purpose of the continuance is to allow the petitioner an additional opportunity to comply with Prob C §2620(c). The Court will allow one more continuance before dismissing the matter without prejudice pursuant to Local Rule 6.2(C)(2)(c).